

(2) The railway administration shall, out of the sale proceeds received under sub-section (1) retain a sum equal to the freight and other charges including expenses for the sale due to it and the surplus, if any, of such sale proceeds, shall be rendered to the person entitled thereto.

Comment

Section 85 provides for disposal of perishable consignment in the circumstances mentioned therein.

86. Sales under Secs. 83 to 85 not to affect the right to suit.- Notwithstanding anything contained in this chapter the right of sale under Secs. 83 to 85 shall be without prejudice to the right of the railway administration to recover by suit, any freight, charge, amount or other expenses due to it.

Comment

Section 86 lays down that right of sale under Secs. 83 to 85 shall not be a bar to the recovery of freight or other charges, etc. by railway administration by suit.

87. Power to make rules in respect of matters in this Chapter.- (1) The Central Government may, by notification, make rules to carry out the purposes of this Chapter.

(2) in particular, and without prejudice to the generally of the foregoing power, such rules may provide for all or any of the following matters, namely:

(a) goods in respect of which no forwarding note shall be executed under proviso sub-section (1) of Sec. 64 ;

(b) dangerous and offensive goods for the purposes of sub-section (1) of Sec. 67;

(c) infectious or contagious diseases for the purposes of Sec. 68 ;

(d) rates of penalty charges under Sec. 73 ;

(e) the manner in which the consignment may be delivered without a railway receipt under Sec. 76;

(f) the manner in which the consignment or the sale proceeds to the person entitled thereto under Sec. 77 ;